



KeyCite Yellow Flag
Proposed Legislation

United States Code Annotated
Title 42. The Public Health and Welfare
Chapter 45. Fair Housing (Refs & Annos)
Subchapter I. Generally (Refs & Annos)

42 U.S.C.A. § 3602

§ 3602. Definitions

Currentness

As used in this subchapter--

- (a) “Secretary” means the Secretary of Housing and Urban Development.
- (b) “Dwelling” means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.
- (c) “Family” includes a single individual.
- (d) “Person” includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11, receivers, and fiduciaries.
- (e) “To rent” includes to lease, to sublease, to let and otherwise to grant for a consideration the right to occupy premises not owned by the occupant.
- (f) “Discriminatory housing practice” means an act that is unlawful under [section 3604](#), [3605](#), [3606](#), or [3617](#) of this title.

(g) “State” means any of the several States, the District of Columbia, the Commonwealth of Puerto Rico, or any of the territories and possessions of the United States.

(h) “Handicap” means, with respect to a person--

(1) a physical or mental impairment which substantially limits one or more of such person's major life activities,

(2) a record of having such an impairment, or

(3) being regarded as having such an impairment,

but such term does not include current, illegal use of or addiction to a controlled substance (as defined in [section 802 of Title 21](#)).

(i) “Aggrieved person” includes any person who--

(1) claims to have been injured by a discriminatory housing practice; or

(2) believes that such person will be injured by a discriminatory housing practice that is about to occur.

(j) “Complainant” means the person (including the Secretary) who files a complaint under [section 3610](#) of this title.

(k) “Familial status” means one or more individuals (who have not attained the age of 18 years) being domiciled with--

(1) a parent or another person having legal custody of such individual or individuals; or

(2) the designee of such parent or other person having such custody, with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years.

(l) “Conciliation” means the attempted resolution of issues raised by a complaint, or by the investigation of such complaint, through informal negotiations involving the aggrieved person, the respondent, and the Secretary.

(m) “Conciliation agreement” means a written agreement setting forth the resolution of the issues in conciliation.

(n) “Respondent” means--

(1) the person or other entity accused in a complaint of an unfair housing practice; and

(2) any other person or entity identified in the course of investigation and notified as required with respect to respondents so identified under [section 3610\(a\)](#) of this title.

(o) “Prevailing party” has the same meaning as such term has in [section 1988](#) of this title.

CREDIT(S)

([Pub.L. 90-284, Title VIII, § 802](#), Apr. 11, 1968, 82 Stat. 81; [Pub.L. 95-598, Title III, § 331](#), Nov. 6, 1978, 92 Stat. 2679; [Pub.L. 100-430, § 5](#), Sept. 13, 1988, 102 Stat. 1619.)

[Notes of Decisions \(124\)](#)

O’CONNOR’S CROSS REFERENCES

See also Prop. Code §§301.003, 301.004.

O'CONNOR'S ANNOTATIONS

Bank of Am. Corp. v. City of Miami, 581 U.S. 189, 197 (2017). “The FHA permits any aggrieved person to bring a housing-discrimination lawsuit. [¶] [T]he definition of ‘person aggrieved’ in the original version of the FHA ... showed a congressional intention to define standing as broadly as is permitted by ... the Constitution. *At 198*: [I]n 1988, when Congress amended the FHA, it retained without significant change the definition of ‘person aggrieved’ that this Court had broadly construed. *At 200*: [P’s] complaints allege that [Ds] intentionally targeted predatory practices at African-American and Latino neighborhoods and residents.... That unlawful conduct led to a concentration of foreclosures and vacancies in those neighborhoods. Those concentrated foreclosures and vacancies caused stagnation and decline in African-American and Latino neighborhoods. They hindered [P’s] efforts to create integrated, stable neighborhoods. And, highly relevant here, they reduced property values, diminishing [P’s] property-tax revenue and increasing demand for municipal services. *At 201*: [P] alleges economic injuries that arguably fall within the FHA’s zone of interests, as we have previously interpreted that statute. Principles of *stare decisis* compel our adherence to those precedents in this context.” (Internal quotes omitted.) See also *Tenth St. Residential Ass’n v. City of Dallas*, 968 F.3d 492, 501 (5th Cir.2020).

SoCal Recovery, LLC v. City of Costa Mesa, 56 F.4th 802, 812-13 (9th Cir.2023). Section 3602(h) (1) "is often referred to as the 'actual disability' prong.... [¶] Alcoholism and drug addiction are 'impairments' under the FHA.... The impairment cannot include 'current, illegal use of or addiction to a controlled substance.' *At 814-15*: We ... hold that ... sober living home operators can satisfy the 'actual disability' prong *on a collective basis* by demonstrating that they serve or intend to serve individuals with actual disabilities. [Ps] need not provide individualized evidence of the 'actual disability' of their residents. Rather, they can meet their burden by proffering admissible evidence that they have policies and procedures to ensure that they serve or will serve those with actual disabilities and that they adhere or will adhere to such policies and procedures. We have held that plaintiffs may establish an actual disability through non-medical evidence. [¶] [Ps] can prove the 'actual disability' of their current residents and any residents they seek to serve in the future through admissions criteria and house rules, testimony by employees and current residents, and testimony by former residents."

42 U.S.C.A. § 3602, 42 USCA § 3602

Current through P.L. 119-36. Some statute sections may be more current, see credits for details.